

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

LEVAN MALLARD

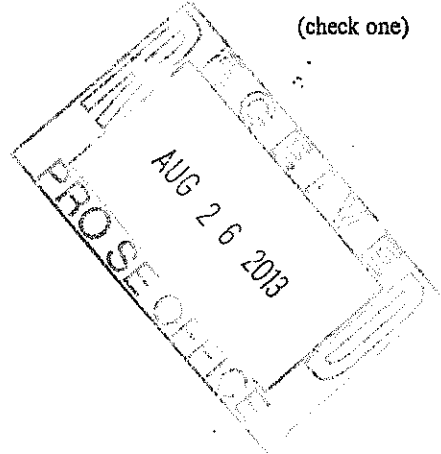
13 CV 6035

(In the space above enter the full name(s) of the plaintiff(s).)

-against-

DET. JOSEPH TOWNSEND, UNDERCOVER 0043,
UNDERCOVER 0019, ATALANTA MIHAS, HON.
JUDGE EDWARD MCLAUGHLIN, HON. JUDGE
LEWIS BART STONE, JAIMIE PHILLIPS, DET.
JASON MILLER

COMPLAINT

under the
Civil Rights Act, 42 U.S.C. § 1983
(Prisoner Complaint)Jury Trial: ☒ Yes ☐ No
(check one)

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff	Name	LEVAN MALLARD
	ID #	11-R-2658
	Current Institution	WALLKILL CORRECTIONAL FACILITY
	Address	Route 208, P.O. Box G, Rm. C1-12B, WALLKILL, N.Y. 12589-0286

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1	Name	DET. JOSEPH TOWNSEND	Shield #	5433
	Where Currently Employed	NEW YORK CITY POLICE DEPARTMENT		
	Address	One Police Plaza, NEW YORK, N.Y. 10038		

Defendant No. 2 Name UNDERCOVER OFFICER Shield # 0044
 Where Currently Employed NEW YORK CITY POLICE DEPARTMENT
 Address One Police Plaza, NEW YORK, N.Y. 10038

Defendant No. 3 Name UNDERCOVER OFFICER Shield # 0019
 Where Currently Employed NEW YORK CITY POLICE DEPARTMENT
 Address One Police Plaza, NEW YORK, N.Y. 10038

Defendant No. 4 Name ATALANTA MIHAS Shield # _____
 Where Currently Employed DISTRICT ATTORNEY, NEW YORK
 Address 80 Centre Street, NEW YORK, N.Y. 10013

Defendant No. 5 Name HON. JUDGE EDWARD MCLAUGHLIN Shield # _____
 Where Currently Employed SUPREME COURT OF NEW YORK
 Address 100 Centre Street, NEW YORK, N.Y. 10013

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. In what institution did the events giving rise to your claim(s) occur?
No institution, during the due process of law, in the county
courthouse.

B. Where in the institution did the events giving rise to your claim(s) occur?
No institution, I am giving rise to my claim, during the
due process of law, and on the street location 122 st. &
Madison Ave. NEW YORK, N.Y.

C. What date and approximate time did the events giving rise to your claim(s) occur?
My arrest date July, 27th, 2010; 10:48 a.m., at 122 St. &
Madison Ave. NEW YORK, N.Y.

continue.....

Defendant No. 6 Name HON. JUDGE LEWIS BART STONE Shield #
Where Currently Employed SUPREME COURT OF NEW YORK
Address 100 Centre Street, Part 31, NEW YORK, N.Y. 10013

Defendant No. 7 Name Attorney JAIMIE PHILLIPS
Where Currently Employed 18B For the Courts
Address 40 Exchange Place, NEW YORK, N.Y.

Defendant No. 8 Name DET. JASON MILLER Shield # 2120
Where Currently Employed NEW YORK CITY POLICE DEPARTMENT
Address One Police Plaza, NEW YORK, N.Y. 10038

Defendant No. 9 Name Gregory Wilson
Where Currently Employed UNKNOWN
Address UNKNOWN

D. Facts: Upon the events of my arrest UNDERCOVER 0019 swore falsely during due process of law indicating I was involved in an drug sale with the lack of tangible property on my person I did not make an profit. UNDERCOVER 0043 potenial testimony lacks factual knowledge of an sale. DET. JOSEPH TOWNSEND issued an arrest of I of an drug transaction with the lack of knowledge and swore falsely during the pretrial hearings indicating I was in- in a drug sale, when DET. TOWNSEND apprehended I, there was no drugs or money of an drug sale profit in my possession, there was no probable cause to issue an arrest. The prosecutor MS. ATALANTA MIHAS, was aware there was no tangible property on I, during the arrest of an drug sale, during the grand jury the prosecutor had knowledge that I did not make an profit from the alleged sale, but failed to presented that fact to the grand jury. DET. JASON MILLER knowingly swore falsely during the bench trial indicating I as an drug dealer on pasted arrest, in which too cause prejudice so the court can speculate I sold drugs on the day of my arrest. JAIMIE PHILLIPS swore falsely during the bench trial by violating my invasion of privacy rights, with an illegal

What happened to you?

Who did what?

Was anyone else involved?

Who else saw what happened?

III. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received. No injuries.

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?

Yes _____ No

Complaint continued.....

warrant to disclose my cell phone information. The prosecutor was aware that GREGORY WILSON'S testimony did not disclose I was selling drugs on the day of my arrest, MR. WILSON'S clearly states he does not know what certain letters means. The prosecutor aware hearsay she presented hearsay testimony of what DET. NAVARRO'S observed. HON. JUDGE EDWARD MCLAUGHLIN violated my right to due process for allowing the people to present tainted evidence, in which caused prejudice, with the evidence presented its probative value was outweighed by prejudice. The prejudice was the fact, neither of the prosecutor's witnesses had any knowledge to the crime in the indictment, HON. JUDGE MCLAUGHLIN should have suppress any physical evidence against me, for the reason the court had to speculate on the fact whether I was involved in the sale too UNDERCOVER OFFICER 0019. HON. JUDGE LEWIS BART STONE, violated my right to due process rights for allowing the prosecutor to present witnesses with no factual knowledge which I committed the crime in the indictment, only cause the court to prejudice me. For allowing an illegal eavesdropping warrant to be presented as evidence by DET. TOWNSEND with the lack of personal knowledge or an statement which has facts of my cell phone's involvement in a drug sale. For allowing DET JASON MILLER'S to cause prejudice, the detective never testified to knowledge of the crime in the indictment. Defense Attorney JAIMIE PHILLIPS violated my right to due process, by not having an correlative relationship with me, which cause numerous of conflicts of interests through arrignment court, pretrial hearings, Bench trial and sentencing. During arrignment court I demanded defense counsel to seek removal to drug treatment court which is NEW YORK STATE LAW, demand to the court prompt an preliminary hear to see if there is enough information for grand jury action, which is an NEW YORK STATE LAW, make an factual challenge to the court, to see if there is an verified statement from any of the prosecutor's witnesses testifying the I committed the crime in the instrument, defense counsel MR. PHILLIPS did not comply to any of my demands. I demanded MR. PHILLIPS to send me an copy of the eavesdropping warrants application, again defense counsel did not comply to my demand. All of my demands made common sense, these are proper tactical decisions for an drug related offense. Defense counsel is not to argue with the defendant and avoid any types of conflicts of interests, this prove defense counsel's performance was deficient.

when and how, and their response, if any: I did not inform any official
about an claim.

G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies. I did not exhaust any of my administrative remedies.

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. Relief:

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount). One million dollars(\$1,000,000) from
each defendant mention in this claim.

VI. Previous lawsuits:

On
these
claims

A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes ____ No ✓

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes ____ No ____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

On
other
claims

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?

Yes ____ No

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes ____ No ____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 21 day of August, 2013.

Signature of Plaintiff

Lem Malen

Inmate Number

11-R-2658

Institution Address

WALLKILL CORRECTIONAL FACILITY
Route 208, P.O. Box G, Rm. C1-12B

WALLKILL, N.Y. 12589-0286

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 21 day of August, 2013, I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

P. Malen